

9:00 AM

Line 4

25-CIV-08305 LUISA CABRERA, ET AL VS. UDR BAY TERRACE L.P., ET AL

LUISA CABRERA
UDR TEXAS PROPERTIES LP

MICHAEL M ASTANEHE
STACY M. DOOLEY

Defendant UDR Texas Properties L.P.'s Motion to Compel Plaintiffs' Responses to Request for Production of Documents, Set One; and request for Sanctions for \$3,500.00

TENTATIVE RULING:

Defendant UDR Texas Properties LP's ("Defendant") unopposed motion to compel further responses to Defendant's Request for Production of Documents ("RFPs") (Set One), and to compel production of documents, and request for sanctions, filed May 6, 2026, is GRANTED-in-part and DENIED-in-part, as set forth below.

The motion to compel further responses to the RFPs is GRANTED. For each of the 99 RFPs, Plaintiffs have asserted a long list of objections, followed by the following statement:

Without waiving the above objections, Responding Party responds as follows:
Responding Party complies with this request for production in full pursuant to California Code of Civil Procedure section 2031.030(c)(2)(c), and all documents or things in the requested category in Responding Party's possession, custody, or control of Responding Party. Please see Responding Party's concurrent document production, specifically [followed by a long list of different categories of documents]

The foregoing is not a code-complaint statement of compliance. First, each of Plaintiffs' RFP responses purports to comply with Code Civ. Proc. § 2031.030(c)(2)(c), which is not an applicable statute. § 2031.030 does not pertain to RFP responses, and the cited subsection (§ 2031.030(c)(2)(c)) does not exist. The applicable statute is Code Civ. Proc. § 2031.222, which states:

A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.

For each response, if Plaintiffs are agreeing to comply in full, their response should track the language of § 2031.222.

Further, each RFP response includes an incomplete sentence, which makes it unclear whether Plaintiffs are agreeing to produce all responsive documents (“Responding Party complies with this request ... and all documents and things in the requested category in Responding Party’s possession, custody, or control of Responding Party.”)

Within 20 days of service of this Order, Plaintiffs shall provide further responses that comply with Section 2031.222.

The motion to compel Plaintiffs to identify which produced documents are responsive to which RFPs is also GRANTED. Code Civ. Proc. § 2031.280 states:

(a) Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.

Here, in response to Defendant’s RFPs, although Plaintiffs have separated the roughly 70,000 pages of produced documents into different categories, Plaintiffs appear to have identified all of the roughly 70,000 pages of documents as being responsive to each of the 99 RFPs. This is not a good faith statement of compliance with § 2031.280, because it leave Defendant guessing at to which of the nearly 70,000 pages are responsive to each RFP.

Within 20 days of service of this Order, Plaintiffs shall provide a further response identifying, specifically, which of the produced documents are responsive to each RFP, in compliance with Section 2031.280.

Finally, for any responsive documents that have been withheld from production due to any claimed privilege, Plaintiffs shall serve upon Defendant, within 20 days of this Order, a privilege log identifying each withheld document. (Code Civ. Proc. § 2031.240(c)(1).)

In the Court’s discretion, Defendant’s request for monetary sanctions is GRANTED-in-part, in the amount of \$1,000, against Plaintiffs and their counsel, Michael Astanehe, jointly and severally, which shall be paid within 30 days of notice of entry of this Order.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

25-CIV-08305 LUISA CABRERA, ET AL VS. UDR BAY TERRACE L.P., ET AL

LUISA CABRERA
UDR TEXAS PROPERTIES LP

MICHAEL M ASTANEHE
STACY M. DOOLEY

Defendant UDR Texas Properties L.P.'s Motion to Compel Plaintiffs' Responses to Form Interrogatories – General, Set One and Special Interrogatories, Set One; and Request for Sanctions for \$3,500.00

TENTATIVE RULING:

Defendant UDR Texas Properties LP's ("Defendant") unopposed motion to compel Plaintiffs to serve further responses to Defendant's Form Interrogatories (Set One) and Special Interrogatories (Set One), and request for sanctions, filed May 6, 2026, is GRANTED-in-part and DENIED-in-part, as set forth below.

Form Interrogatories – DENIED without prejudice

Defendant does not appear to have filed a Separate Statement setting forth the disputed form interrogatories and Plaintiffs' corresponding responses. (Calif. Rules of Court, rule 3.1345.)

Special Interrogatories - GRANTED

Plaintiffs' response to each of the 247 Special Interrogatories consists of a laundry list of objections, followed by the statement:

"Responding Party cannot identify each and every fact responsive to this special interrogatory due to the multi-year nature of the tenancy."

Although 247 special interrogatories far exceeds the statutory limit of 35 (Code Civ. Proc. § 2030.030(b)), Plaintiffs did not file a motion for protective order based on the large number of interrogatories. Plaintiffs' responses are plainly deficient, because they provide no responsive information at all. Plaintiffs also have not opposed the present motion.

The Court notes that while the number of special interrogatories is large, they are closely tied to the Complaint's allegations, which consists of 58 pages of allegations and 12 asserted causes of action.

Within 20 days of service of this Order, Plaintiffs shall provide further, verified, code-compliant responses to all 247 of Defendant's Special Interrogatories (Set One).
